

**PERFORMANCE WORK STATEMENT (PWS)
U.S. ARMY CORPS OF ENGINEERS - PORTLAND DISTRICT
HYDROELECTRIC DESIGN CENTER
SAMPLE TESTING**

1.0 General Statement

This is a Firm Fixed-Priced, five-year, Single Award Blanket Purchase Agreement (BPA) entitled Sample Testing. Requests for services will be made via a Call utilizing the pricing in this Agreement. The Period of Performance will be 5 years from the date of award.

1.1 The Contractor shall provide all personnel, equipment, tools, and all other items necessary to perform sample testing services for the US Army Corps of Engineers (USACE), Hydroelectric Design Center (HDC).

1.2 The Contractor shall receive samples, machine appropriate specimen shapes, test samples, and submit reports of the test results for each Call issued by USACE, HDC. The samples will be provided by USACE, HDC to the Contractor. The testing within this BPA is applicable to steel samples and/or coupons that come from existing and/or new steel components for hydropower facilities across the Nation. See Paragraph 5.1.2 for the expected types of steel that may be tested.

1.3 The Contractor's laboratory facility must be able to perform the tests listed in Paragraph 5.1.2 in accordance with the corresponding ASTM standard throughout the life of this agreement.

2.0 Definitions

Throughout this agreement terms are defined as follows:

American Society for Testing and Materials (ASTM): An international standard organization that develops and publishes consensus technical standards for materials, products, systems, and services.

Contracting Officer (KO): The Government employee who is authorized to enter into, administer, and/or terminate contracts and make related determinations and findings.

Contracting Officer's Representative (COR): The Government employee who has been authorized in writing by the KO as the Contracting Officer's Representative, acting within the limits of their designated authority.

Contract Discrepancy Report (CDR): A written record of unsatisfactory performance by the Contractor as observed by the Government.

3.0 Government Shall Furnish

The Government shall provide the samples that are to be tested under a given Call to the Contractor.

4.0 Contractor Shall Furnish

The Contractor shall provide all personnel, equipment, tools, and all other items necessary to perform sample testing services as defined in this agreement within their laboratory facility.

4.1 Personal Safety Protection & Other Equipment

Under the performance of this agreement, the Contractor shall provide their employees all personal protective safety equipment (PPE), such as hardhats, steel-toed boots, safety vest, safety goggles and hearing protection, as required per each Call issued. The Contractor shall provide any miscellaneous supplies necessary for inspection such as flashlights and any materials required to perform the work outlined by the COR.

4.2 Insurance Certificates

Proof of Insurance shall be submitted to the contracting office within five days after both parties have signed the agreement. Insurance shall be updated annually and kept current through the life of the agreement.

4.3 Letter of Authority

The Contractor shall provide and maintain throughout the life of the agreement, an up-to-date Letter of Authority outlining the individuals and the authorities granted within their company. This Letter of Authority shall contain the typed signature block, signature, and contact information for everyone granted authority with identification of the authority granted them. This Letter of Authority shall be signed by the individual who signed the agreement.

4.4 Subcontracting

The Contractor shall notify both the Contracting Officer and the COR in writing, of any work to be subcontracted. Compliance with the provisions of this agreement by subcontractors shall be the responsibility of the Contractor.

5.0 Performance Standards and Requirements

The Contractor shall perform all testing according to the required standards of the Call and those associated with the material of the sample. The Contractor shall provide sufficient supplies, tools, and equipment to adequately perform testing. Attachment A1 is the Schedule of Tests by CLIN which lists **either a group of or single tests to be completed for a given sample that will be provided by the Government.** The Contractor shall provide sufficient supplies, materials, and equipment to adequately gather, collect and transport samples to lab for testing. Note that Attachment A1 will be updated annually, upon mutual agreement between the Contractor and the Contracting Officer.

5.1 Testing

The Contractor shall perform tests according to the required standards associated with

the Call and material of the sample. Attachment A1 is the Schedule of Tests by CLIN which lists either a group of or single tests to be completed for a given sample. The approved tests, anticipated quantity per each, and, at award, will list the price per each as agreed upon by the Contractor. The Contractor shall provide sufficient supplies, materials, and equipment to adequately test samples either on the designated site or at a lab. The schedule of tests and pricing will be evaluated annually and updated as agreed upon by the Contractor and Contracting Officer.

5.1.1 Response of Testing

The completed tests associated with the Call and the test report discussing the results is to be provided to the COR no later than 14 calendar days following receipt of the coupon at the laboratory. If deficiencies are noted, immediate notification shall be provided to the COR. Notification for upcoming testing will be made either by phone, email, or letter.

5.1.2 Potential Tests

The following lists all potential types of tests that could be included in a Call. In Attachment 1, the line items are broken up into various groupings of tests or single tests. At the time of issuing the BPA, it is expected that the steel material of the samples may conform to ASTM A743, A148, A216, A516, and A27. The exact steel material is to be confirmed in the Call.

a. Chemical Analysis

Perform a chemical analysis according to the requirements of ASTM A751. Report chemical composition percent for the following elements (carbon, manganese, silicon, phosphorus, sulfur, chromium, nickel, copper, molybdenum, vanadium, and tungsten). The reported values shall be compared to the standard of the material provided in the Call.

If directed in the Call, the carbon composition percent shall be verified using combustion method according to the requirements of ASTM E1019, Sections 10-20. Carbon combustion method is anticipated to only be included in a Call for stainless steel materials where the Government limits carbon content to 0.03%.

b. Hardness Tests

Perform a hardness test according to the requirements of ASTM A370. Three readings shall be taken.

c. Tension Tests

Perform a tension test according to the requirements of ASTM A370. The test specimen shall be machined to the form and dimensions of the standard round 2 inch gage length specimen as shown in Figures 4 and 5 of ASTM A370. If directed on the Call, samples may be subsize requiring smaller specimen sizes but shall meet ASTM A370 recommendations at a minimum. Report the yield strength (MPa, psi is optional), tensile strength (MPa, psi is optional), elongation (percent), and reduction of area (percent). The reported values shall be

compared to the standard of the material provided in the Call.

d. Impact Tests

Perform a Charpy V-notch impact test on three specimens per coupon at 0°C in accordance with ASTM A370. The test specimens shall be machined in the form and dimensions of the standard full-size specimen as shown in Figure 11 of ASTM A370. If directed on the Call, samples may be subsize requiring smaller specimen sizes but shall meet ASTM A370 recommendations at a minimum. Report absorbed energy (joules) and the average for the three specimens (joules).

5.1.3 References for Testing

ASTM A751	(2021) Standard test methods and practices for chemical analysis of steel products
ASTM A370	(2022) Standard test methods and definitions for mechanical testing of steel products
ASTM E1019	(2018) Standard test methods for determination of carbon, sulfur, nitrogen, and oxygen in steel, iron, nickel, and cobalt alloys by various combustion and inert gas fusion techniques
ASTM A743	(2021) Standard specifications for castings, iron-chromium, iron-chromium-nickel, corrosion resistant, for general application
ASTM A148	(2020) Standard specifications for steel castings, high strength, for structural purposes
ASTM A216	(2021) Standard specification for steel castings, carbon, suitable for fusion welding, for high-temperature service
ASTM A516	(2017) Standard specification for pressure vessel plates, carbon steel, for moderate- and lower-temperature service
ASTM A27	(2020) Standard specification for steel castings, carbon, for general application

5.2 Reporting Procedures

Work under this agreement is scheduled to commence in accordance with the issued Call. In the absence of direction provided by a Call, then test reports shall be submitted electronically as a .pdf via e-mail to the COR within 14 calendar days of receipt of the samples.

Test reports shall be complete, clear, and shall include the results of all analysis/tests performed for a provided sample in a Call. The report shall be written in English. Each report shall include the following information:

1. Identification of the sample by a designated number matching the designated number provided by the Government for that sample.
2. Date, time, type of test and testing location, and the name of the organization performing the test.

3. The results of each analysis/test required in a Call. This may include chemical, hardness, tensile, and impact tests as described above.
4. Comparison of the sample results to that of the material standard and identifying the deficiencies.
5. Testing comments, observations, and photos.

5.3 Storage and Disposal

The test specimens and remnant material from the received samples are to be stored at the Contractor's facility for 30 calendar days following the provision of the test report. The intent for this is to allow time for reviewing results and determining whether additional tests would be needed. After 30 calendar days, the test specimens and remnant material are to be disposed of if the Extra Storage (CLIN 0012) option is not requested.

6.0 Performance Requirements Summary (PRS)

The PRS is intended to ensure that the Government receives the services for which it contracted. The Government will only pay for services received. The Performance Requirement Summary (PRS) determines if the Contractor meets the performance standards of the agreement. It ensures timeliness, effectiveness, and that the Contractor is delivering the results specified in the agreement. Government contract Quality Assurance will be performed at such times and/or places as may be necessary to determine the services conform to the requirements.

The Contractor service requirements are summarized into performance objectives that relate directly to mission essential items.

6.1 Performance Requirements Summary (PRS) Table

These are the criteria against which the performance will be evaluated. Work shall be considered not to have been performed when any one of the following conditions exists in accordance with the Quality Assurance Surveillance Plan (QASP).

PERFORMANCE REQUIREMENTS SUMMARY				
Performance Objective	Performance Standards	Acceptable Quality Levels	Method of Surveillance	Validated Deficiency
Testing (all paragraphs in 5.1)	Specified testing standards and procedures as specified by the Call	Zero Deviations from PWS	Review of final test report	
Reporting (Paragraph 5.2)	Reports shall provide results of test performed on samples in an accurate and concise manner.	Zero Deviations from PWS	Review of final test report	

6.2 Quality Control (QC)

Quality control of the performed tests and results shall be in compliance with the test standards associated with the Call.

6.3 Unacceptable Performance

When performance is determined unacceptable, as defined in the PRS, the COR will notify the Contractor's representative that performance is unacceptable and provide written documentation. Disputes in surveillance shall be referred to the Contracting Officer. Examples of deficiencies include, but are not limited to:

- a. Failure to perform the test in accordance with the applicable standard.
- b. Failure to provide post-test reports in the specified timeframe.

6.3.1 Correction of Unacceptable Performance

The COR will notify the KO of less than acceptable performance. If any of the services do not conform to contract or agreement requirements, the Government may require the Contractor to perform the services again in conformity with the agreement requirements and at no additional cost to the Government. When the defect(s) in services cannot be corrected by re-performance, the Government may:

- a. Require the Contractor to take necessary action to ensure future performance conforms to the agreement requirements.
- b. Reduce the contract price to reflect the reduced value of the services performed.
- c. If the Contractor fails to promptly re-perform the services, or to take the necessary action to ensure future performance in conformity with the agreement requirements, the Government may use one of these methods to resolve the deficiency:
 - (1) By contracted procurement or otherwise, perform the services and charge to the Contractor any cost incurred by the Government that is directly related to the performance of such service.
 - (2) Issue a Cure Notice.
 - (3) Terminate the Agreement for Government Convenience.
 - (4) Terminate the Agreement for Cause.

6.3.2 Correction of Non-Performance of Work

The Contractor shall employ an adequate quantity of personnel to ensure that any area found to be not in compliance and therefore not acceptable, shall be made acceptable by the performance or re-performance of the work, where such re-performance is

possible, during the first business day after the non-compliance has been observed by or reported to and verified by the COR.

If the Contractor fails to perform or re-perform the services required by a Call, the Government may also choose to assign the work to another party. If this occurs, the Contractor shall be required to reimburse the Government for the full costs of the work performed including labor, materials, transportation, and supervision

The Government may require the Contractor to discontinue using any employee in the performance of the work specified in this agreement determined by the Government to be unsatisfactory.

6.3.3 Performance Standard

Recurring defects are not permitted for any of the above service items. No defect is recorded against the Contractor's performance if the defect is immediately corrected. However, if this same situation occurs again during the agreement period, an incident will be recorded and reported to the KO for appropriate action in accordance with FAR 52.212.4, Contract Terms and Conditions-Commercial Items (Dec 2022).

7.0 General

7.1 Calls for Service

Work under this agreement is scheduled to commence in accordance with the issued Call. Calls will be issued when sampling and testing services available under this agreement become known and needed. Calls are issued via a Call Order form provided as Attachment A3 Coupon Testing Call Order Form. Calls must be placed by an Authorized Ordering Individual; see Attachment A4. Calls are not to be received by the Contractor from individuals who are not designated as Authorizing Ordering Individuals. The Authorized Ordering Individuals may be changed by the Government at any time with an updated list provided to the Contractor.

7.1.1 For Calls under \$10,000, the Government will contact a vendor/Contractor under the BPA directly. To choose a vendor/Contractor, the Government will consider (1) cost based upon awarded price schedule, (2) certification for the test needed, (3) availability, and (4) potential conflict of interest (on a particular project, the Government will not utilize a testing agency already being used by the Construction Contractor). Generally, the Government will attempt to spread work evenly amongst all vendors under the BPA. However, cost will be the primary factor when choosing a vendor.

7.1.2 The Contractor must be able to take payments via a credit card over the phone as payments up to \$10,000 will be paid for on a Government Purchase Card (GPC).

7.1.3 For Calls over \$10,000, the requirement will be competed amongst all BPA Contractors. On Calls over \$10,000, payments will be processed through the USACE Finance Center using receiving reports and take up to 30 days for payments to be paid.

7.1.4 The Government will track Calls placed to the Contractor. A unique Call number will not be assigned per each Call placed by the Government. However, the Contractor is encouraged to establish a unique identifier per their company's practice. An example of the Government's BPA Call Order Tracking Sheet may be found in Attachment A2.

7.2 Measurement and Payment for the Price/Bid Schedule

7.2.1 Price/Bid Items for tests with the unit of measure of EACH-"EA" shall be measured for payment based on the number of each test performed. The price and payment shall be compensation for labor, materials, and equipment to perform laboratory tests and to submit test reports as specified in the referenced standard for each unit item.

7.2.2 Price/Bid Items for tests with the unit of measure of SET shall be measured for payment based on the number of each set of tests performed as required by the indicated ASTM (typically three tests per one set). The price and payment shall be compensation for labor, materials, and equipment to perform laboratory tests and to submit test reports as specified in the referenced standard for each unit item.

7.3 Invoicing for Work

The Contractor may invoice USACE for work performed at the conclusion of a test, after the test results have been provided. Invoices shall be submitted based upon the information contained in the Call and upon the dollar value of the Call. As stated previously, Calls under \$2,500 will be paid for by credit card, whereas Calls above \$2500 will be paid for by an invoice sent to the USACE Finance Center and to the office of the COR and POC who placed the Call.

7.4 McNamara-O'Hara Service Contract Act (SCA)

The SCA will apply to all Calls over \$2,500 and the requirements of the SCA would apply to all employees working on the Calls.

Every employer performing work covered by McNamara-O'Hara Service Contract Act (SCA) is required to post a notice of the compensation required (including, for service contracts, any applicable wage determination) in a prominent and accessible location at the worksite, (for this agreement the worksite would be the employee's place of work or laboratory), where it may be seen by all employees performing work on the agreement. A copy of the poster is available at the following website for the Department of Labor: <http://www.dol.gov/whd/regs/compliance/posters/sca.htm>.

7.5 Contract Changes

Changes in scope, time, or deliverables can only be authorized by the Contracting Officer (KO). The Contractor shall notify the KO immediately if they have received direction to perform work outside the scope of the contract. Changes in scope will be negotiated and a written modification issued, before proceeding with the work.

7.6 Veterans Employment Emphasis for USACE Contracts

In addition to complying with the requirements outlined in FAR Part 22.13, FAR

Provision 52.222-38, FAR Clause 52.222-35, FAR Clause 52.222-37, DFARS 222.13 and Department of Labor regulations, U.S. Army Corps of Engineers (USACE) Contractors and subcontractors at all tiers are encouraged to promote the training and employment of U.S. veterans while performing under a USACE Contract. While no set-aside, evaluation preference, or incentive applies to the solicitation or performance under the resultant Contract, USACE Contractors are encouraged to seek out highly qualified veterans to perform services under this Contract. The following resources are available to assist USACE Contractors in their outreach efforts:

U.S. Department of Labor Veterans employment: www.vets.gov
Federal veteran employment information: www.fedshirevets.gov/index.aspx
Veterans' Employment and Training Service (VETS): <http://www.dol.gov/vets>
Veterans Opportunity to Work (VOW) Program: <http://benefits.va.gov/vow>
Hiring Our Heroes initiative: www.uschamberfoundation.org/hiring-our-heroes

7.7 Points of Contact

Points of contact for each Call, will be established at the time each Call is placed. The COR(s) will be established and communicated to the Contractor following contract award.

8.0 Attachments

Attachment A1 - Schedule of Tests and Sampling by CLIN

Attachment A2 - BPA Call Order Tracking Sheet

Attachment A3 - Coupon Testing Call Order Form

Attachment A4 - Authorized Ordering Individuals